

**Commonwealth of Massachusetts
The Trial Court**

**SUMMARY PROCESS SUMMONS
AND COMPLAINT**

Housing Department

Docket No. _____

Division

Entry Date _____

, ss

THIS IS A COURT NOTICE OF A PROCEEDING TO
EVICT YOU, PLEASE READ IT CAREFULLY
IMPORTANTE ESTE DOCUMENTO ES UNA NOTICIA DE UNA CORTE,
RESPECTO A PROCEDIENTES PARA DESALOJARLE

TO: _____

ADDRESS: _____ CITY: _____ ZIP: _____

You are hereby summoned to appear before a Justice of the Court at the time and place listed below:

DAY: Thursday DATE: _____ TIME: a.m. COURT LOCATION:

Courthouse, ROOM: Courtroom , floor to answer the complaint of

LANDLORD/OWNER: _____ STREET: _____

CITY: _____ ZIP: _____ that you occupy the premises at _____

being within the judicial district of this court, unlawfully and against the right of said Landlord/Owner because

and further, that \$ _____ rent is owed according to the following account:

ACCOUNT ANNEXED

First or Chief Justice

Clerk Magistrate

Signature of Plaintiff or Attorney

Date of Signature of Plaintiff or Attorney

Address of Plaintiff's Attorney

Telephone Number of Plaintiff or Attorney

NOTICE TO OCCUPANTS: At the hearing on _____, you (or your attorney) must appear in person to present your defense. You (or your attorney) must also file a written answer to this complaint (Answer form 2 is available in the clerk's office.) You must file (deliver or mail) the answer with the court clerk and serve (deliver or mail) a copy on the landlord (or landlord's attorney) at the address shown above. The answer must be received by the court clerk and received by the landlord (or the landlord's attorney) no later than the first Monday after the Monday entry day.

IF YOU DO NOT FILE AND SERVE AN ANSWER, OR IF YOU DO NOT DEFEND AT THE TIME OF THE HEARING, JUDGMENT MAY BE ENTERED AGAINST YOU FOR POSSESSION AND THE RENT AS REQUESTED IN THIS COMPLAINT.

NOTIFICATION PARA LAS PERSONAS DE HABLA HISPANA: SI USTED NO PUEDE LEER INGLES TENGA ESTE DOCUMENTO LEGAL TRADUCIDO CUANTO ANTES.

To the Sheriffs of our several Counties, or their Deputies, or any Constable of any City or Town within said Commonwealth.
GREETINGS: We command you to summon the within named tenant/occupant to appear as herein ordered.

WITNESS,

First or Chief Justice

Clerk Magistrate

Entry Date

OFFICER'S RETURN

ss: City/Town _____ Date _____

By virtue of this Writ, I this day served the within-named tenant or occupant and summoned him/her as herein directed, by giving it in hand to _____

or leaving it at _____
the last and usual place of abode. A copy of this summons was mailed first class to the tenant/occupant at the address on _____

Signature of Officer

Printed Name of Officer

Fees: Service _____
Copy _____
Travel _____
Use of car _____
L & U Mailing _____
\$ _____

NOTICE TO LANDLORD/OWNER:

Have the Officer complete and return above.
Service must be made on the defendant no later than the seventh day and not earlier than the thirtieth day before the Monday entry day.
This form must be filed in court no later than the close of business on the scheduled Monday entry day. In appropriate cases, proper evidence of notice to quit must be provided this court upon the filing of this complaint. See Rule 2(d) of the Uniform Summary Process Rules. According to Rule 2(c), the hearing date is the second Thursday (or Friday or Monday in some courts) after the entry day.